

IN THE _____ COURT OF
_____, MISSISSIPPI

(the JUSTICE COURT of the county, or the MUNICIPAL COURT of the municipality, in which the convictions were had)

STATE OF MISSISSIPPI VS. JORDAN AVERY REYES, PETITIONER

CAUSE NO. _____

PETITION FOR EXPUNGEMENT OF MISDEMEANOR CONVICTIONS

(a) This petition is brought under Miss. Code Ann. Sec.

COMES NOW the Petitioner, Jordan Avery Reyes, and petitions this Court, in its discretion, to expunge the record of conviction of the misdemeanors identified below, all of which were had IN THIS COURT, and would show:

1. IDENTIFYING INFORMATION.

- (a) Petitioner's name: Jordan Avery Reyes
- (b) Date of birth: 1990-04-17
- (c) Mailing address: 42 Magnolia Street, Hattiesburg, MS 39401
- (d) Telephone: 601-555-0142
- (e) Email: jordan.reyes@example.org

2. THE CONVICTIONS IN THIS COURT. This route reaches ANY OR ALL misdemeanors in this one court, and only in this one court. List each conviction you ask this Court to expunge - the charge, the cause number and the conviction date - copied from the certified judgments:

- (a) Each conviction, copied from the certified judgments:
- _____

(If you have convictions in another justice or municipal court, they are NOT reached by this petition. Each court expunges only its own misdemeanors, and a separate petition goes to that other court.)

3. THE THREE-ELEMENT SHOWING. Both sections permit the Court, in its discretion, to expunge on a showing made IN OPEN COURT of the following three things. Petitioner will make that showing in open court; it is not made on this page:

(i) that Petitioner has been rehabilitated; (ii) that Petitioner has been of good behaviour and has not been convicted of any offence in ANY COURT for two (2) years since the last conviction; and (iii) that the best interest of society would be served by the expungement.

4. THE TWO-YEAR CLOCK RUNS FROM THE LAST CONVICTION IN ANY COURT - not merely in this court. Petitioner has obtained a Mississippi criminal history record to confirm it rather than relying on memory.

(a) Date of the last conviction in ANY court, per the Mississippi criminal history record:

5. NOTICE TO THE PROSECUTING AUTHORITY. The prosecuting authority for this court receives prior notice of this petition, and the certificate of service evidences it.

WHEREFORE, Petitioner asks the Court, in its discretion, to expunge the record of conviction of the misdemeanors identified above.

SIGNATURE OF PETITIONER

Jordan Avery Reyes, Petitioner

DATE

JORDAN AVERY REYES

42 Magnolia Street, Hattiesburg, MS 39401

Telephone: 601-555-0142

Email: jordan.reyes@example.org

DECLARATION. Petitioner states that the matters set out above are true and correct to the best of Petitioner's knowledge, information and belief.

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ORDER OF EXPUNGEMENT

THIS DOCUMENT IS A PROPOSED ORDER. It is unexecuted. It records no finding this Court has made and nothing in it asserts that the Court has acted.

THIS CAUSE came before the Court on the Petition of Jordan Avery Reyes for expungement of misdemeanor convictions had in this Court, under Miss. Code Ann. Sec. _____, and upon the showing made in open court.

(a) The Court FINDS (findings to be made by the Court, on the showing made in open court):

IT IS THEREFORE ORDERED AND ADJUDGED that the record of conviction of the misdemeanors identified in the Petition, all of which were had in this Court, be and the same is hereby EXPUNGED.

IT IS FURTHER ORDERED that this Order does NOT apply to the confidential records of law-enforcement agencies, and has NO EFFECT on the driving record maintained under Title 63 of the Mississippi Code.

(a) SO ORDERED AND ADJUDGED this day of , 20:

(b) JUDGE:

(c) APPROVED AS TO FORM: Prosecuting authority:

(The findings, the date of entry, the judge's signature and the prosecuting authority's approval as to form are all left blank.)

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CERTIFICATE OF SERVICE

This certificate is captioned for THIS petition. The prosecuting authority receives PRIOR notice of the petition, and this certificate is the evidence of it.

I, Jordan Avery Reyes, certify that I have this day served a true and correct copy of the Petition for Expungement of Misdemeanor Convictions on the prosecuting authority for this Court, by United States mail, postage prepaid, or by hand delivery, addressed as follows:

(a) Prosecuting authority - the MUNICIPAL PROSECUTING ATTORNEY on the Sec. 21-23-7(6) branch, or the equivalent prosecutor for the justice court on the Sec. 9-11-15(3) branch. Name and office:

(b) Address served:

(c) Manner of service (United States mail or hand delivery):

(d) Date served:

Jordan Avery Reyes, Petitioner

Date

JORDAN AVERY REYES

42 Magnolia Street, Hattiesburg, MS 39401

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